

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, September 02, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-00174	Joel Guerrero, et al. vs Sostenes Gallegos
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

Order to Show Cause

Appearance required.

25CV-04106	Michael Andrade vs Brandon Ellison, et al.
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Motion for Order Enforcing Lien and Authorizing and Directing Payment of Settlement Proceeds to Lien Claimant

The motion for order enforcing lien and authorizing and directing payment of settlement proceeds to lien claimant is GRANTED.

Counsel for DCSS is to prepare an order for this Court's signature.

Motion to Compel Further Verified Responses by Defendant Marianne Daughdrill to Form Interrogatories, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Form Interrogatory, Set One, No. 2.13, is GRANTED.

Form Interrogatory No. 2.13 does not invade Defendant's privacy to where Defendant should be relieved from providing a response.

The motion to compel a further response to Form Interrogatory, Set One, No. 4.1, is DENIED. Defendant's response is substantially code-compliant.

The motion to compel a further response to Form Interrogatory, Set One, No. 15.1, is DENIED.

Defendant's response is substantially code-compliant. Defendant stated that they are unable to provide facts in support of the affirmative defenses at this time and that discovery is incomplete and ongoing. This is in essence a statement of insufficient knowledge at this time as well as a statement of efforts to obtain the information through discovery.

The motion to compel further responses to Form Interrogatory, Set One, No. 17.1, is GRANTED.

Defendant is to provide further responses to Form Interrogatories, Set One, No. 17.1, including the subparts, for the responses to each request for admission that is not an unqualified admission.

Defendant is to provide further code-compliant, verified responses, to Form Interrogatories, Set One, Nos. 2.13 and 17.1 within fifteen (15) days of this court's order.

Motion to Compel Further Verified Responses by Defendant Marianne Daughdrill to Requests for Admissions, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Requests for Admission, Set One, No. 28, is DENIED. The request is overbroad as written.

The motion to compel a further response to Requests for Admission, Set One, No. 29, is DENIED. The request is overbroad as written.

The motion to compel a further response to Requests for Admission, Set One, No. 30, is GRANTED.

The request is not overbroad and is relevant. The fact that Defendant may have been on lunch at the time of the incident does not preclude Defendant from providing a code-compliant response.

The motion to a compel further response to Requests for Admission, Set One, No. 31, is GRANTED.

The request is not overbroad and is relevant. The fact that Defendant may have been on lunch at the time of the incident does not preclude Defendant from providing a code-compliant response.

Defendant is to provide further code-compliant, verified responses, to Requests for Admission, Set One, Nos. 30 and 31 within fifteen (15) days of this court's order.

Motion to Compel Further Verified Responses and Production by Defendant Marianne Daughdrill to Demands for Production, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Demands for Production, Set One, No. 4, is DENIED.

Defendant's response is substantially code-compliant as it is an objection only response. To the extent one has not been provided, Defendant is to provide a privilege log based on its privilege objection.

The motion to compel a further response to Demands for Production, Set One, No. 20, is GRANTED.

As there is no statement of compliance, Defendant's response leaves open the possibility that further responsive documents may exist. If all responsive documents have been produced, Defendant is to provide a further response that includes a statement of compliance pursuant to Code of Civil Procedure section 2031.220.

The motion to a compel further response to Demands for Production, Set One, No. 21, is GRANTED.

As there is no statement of compliance, Defendant's response leaves open the possibility that further responsive documents may exist. If all responsive documents have been produced, Defendant is to provide a further response that includes a statement of compliance pursuant to Code of Civil Procedure section 2031.220.

Defendant is to provide further code-compliant, verified responses, to Demands for Production, Set One, Nos. 20 and 21 within fifteen (15) days of this court's order.

Sanctions

All requests for monetary sanctions are DENIED.

The Court finds, under the present circumstances, that the imposition of sanctions against either party would be unjust.